Mujeeb Ur Rahman vs State Of U.P. And Another on 27 August, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:149224

HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL REVISION No. - 1146 of 2022

WITH

CRIMINAL REVISION No. - 5859 of 2024

In Chamber

HON'BLE RAM MANOHAR NARAYAN MISHRA, J.

1. Pleadings have already been exchanged. Criminal Revision No. 1146 of 2022 has been filed against the judgement and order dated 10.1.2020 passed by ACJM, Court no. 5, Bareilly in Complaint Case No. 850 of 2017 (Tarannum Jahan vs. Mujeeb Ur Rahman), P.S. Quila, Bareilly, under Sections 18, 18A, 18B, 19A, 19B, 19F, 20A, 20B, 20C, 22 and 23 of the Protection of Women From Domestic Violence Act, 2005 (for short 'Act, 2005) as well as appellate judgement and order dated 11.2.2022 passed by Additional Sessions Judge/FTC, Bareilly.

2. Criminal Revision No. 5859 of 2024 has been filed by the original complainant against the order dated 2.9.2024. By the impugned order, learned Magistrate had dismissed the application dated 20.10.2023 filed by the applicant wherein she had prayed for execution of judgement dated 10.1.2020 with regard to providing her a separate room in his household as well as return of her Stridhan which includes ornaments, academic and bank documents.

3. As both criminal revisions are related to a complaint under section 12 of the Act, 2005 and final

judgement and order passed therein and a misc. petition filed in respect of execution of said order; these two revisions are being disposed of by this common judgement.

4. The factual matrix of the case in brief is that the complainant Mrs. Tarannum Jahan, filed an application before the court of ACJM, court no. 5, Bareilly under various provisions of the Act, 2005 with averments that Nikah (marriage) of the complainant was solemnized with the opposite party, Mujeeb Ur Rahman, on 28.2.2016, according to Muslim rites and rituals, in which, parents of the complainant had spent around Rs. 4,50,000/- cash and extended warm reception to the guests of the opposite party. The complainant was sent to her matrimonial home after the marriage, where she performed her matrimonial obligations. However, opposite party and his sister Imrana were not happy with the cash and valuables given in the marriage; they used to taunt her for bringing less dowry and started demanding of Rs. 10 lakhs cash and a Car and due to non fulfilment of their demand of dowry, they used to torture and harass her physically and mentally. Her husband used to say to provide half of her share in the land of her brother to him and bring Rs. 05 lakh cash and Car from her parental home. He used to extend threats that he would contract second marriage and leave her; he used to lock her in the house as a hostage and did not permit her to communicate with her family members. He would abuse and give beating to her also; sometime she was kept starving for many days. On 12.7.2017 her husband and sister-in-law, Imrana, and other relatives locked her in the room due to non fulfilment of their demand of dowry. On 30.8.2017 her husband and his relatives, acting in concerted manner, snatched her Rs. 04 lakhs cash, ornaments and necessary academic and other documents, and kicked her out from her matrimonial home; some persons of her parental side visited her husband and his family members and begged them to extend good treatment to her and keep her with him but they did not relent.

5. The complainant has prayed for Rs. 10 lakhs under different sections and Rs. 10 lakhs as one time lump-sum monetary relief, return of her Stridhan and goods gifted to opposite party in the marriage. The application was filed on 16.11.2017 which was registered as Case No. 850 of 2017. Summons were served on the opposite party. He appeared before the court below and filed his written statement, in which, he admitted factum of marriage with the complainant but denied all allegations made in the complaint; the marriage between the complainant and opposite party was settled and solemnized in view of an advertisement published by the complainant in Dainik Jagaran dated 6.12.2015 in which it is stated that a Sunni Pathan 32/ 5feet, 2 inch, MA (Economic), fair complexion, Deendar Namazi and well home-maker. A copy thereof is filed as Annexure-1 to the written statement. However, after the marriage, opposite party found that the material facts were concealed and manipulated in the said advertisement. In the said advertisement, age of the girl is shown as 32 years whereas according to her own high school certificate, her date of birth is shown 4.4.1973, from which, it is evident that on the date of marriage, her actual age was 42 years 08 months 02 days and not 32 years as shown in the advertisement; her height is wrongly shown in the advertisement; her M.A. course was also incomplete whereas at the time of settlement of marriage, her mother Rehana and sister Momina have given assurance that everything stated in the advertisement was correct; they had also assured the opposite party that Tarranum Jahan is healthy and has no ailment but subsequently he came to know that she was suffering from diabetes, fibroids in uterus and many other health complications. She was not able to carry pregnancy, even then he tried to fulfil his matrimonial obligations towards her and got her examined and treated at various

hospitals in Delhi and elsewhere and spent heavy sum of money towards her treatment but no substantive improvement was found. The complainant was posted as Research fellow / Research Attendants in the Institute of Economic Growth, Delhi University from where she was receiving a handsome salary; she used to visit various places in the State of Delhi, Rajasthan, Uttrakhand in connection with her job where she was in companionship of various male friends from whom she was constantly in contact and communication; she did not get ready to return even much persuasion of opposite party to discontinue her intimacy with male friends; she would exert pressure on opposite party to give her divorce and under the pressure of complainant, he pronounced Talaq-e-Ahsan to her on 26.8.2017 as per Sariyat; she went to her parental home on that date.

6. During intervening period of 90 days to make Talaq-e-Ahsan, irreversible, he again made every efforts to persuade her and bring her back but she did not agree and ultimately Talaq become complete after period prescribed in Sariyat. The copy of Fatwa Talaq has been filed. The opposite party is an advocate and due to mental torture given by the complainant, he could not concentrate in his work; the applicant is financially better than the opposite party and requires no compensation or monetary relief from the opposite party. No demand of dowry was ever made either at the time of marriage or after the marriage; infact, the complainant is trying to extort money from the opposite party by filing complaint with false averments; he also stated that in domestic incident report, report filed by DPO on 18.12.2017 as described in section 12 of the Act, 2005, it is stated that the complainant had not adduced any evidence in support of her allegations.

7. Learned ACJM considered the pleadings of the parties in the light of documents filed by the parties and observed in the impugned order that both sides have filed criminal cases against each other with serious allegations; the opposite party has lodged a case bearing Case Crime no. 1002 of 2017, under sections 323, 504, 506, 427, 384 IPC against the complainant at P.S. Kotwali, District Bareilly, and also a complaint case no. 200 of 2018, under sections 379, 418, 452, 506 IPC, PS. Baradari, District Bareilly in which summons were issued by the court on 14.5.2019 against the complainant and her sister and mother; the complainant has also lodged two FIRs against the opposite party and his family members. One as Case Crime No. 1151 of 2017 under sections 498A, 323, 504, 377, 406 IPC and Section of D.P. Act against her husband and sister-in-law and others, and Case Crime no. 467 of 2017 under sections 498-A, 506 IPC and Section of D.P. Act, P.S. Kila, District Bareilly against her husband.

8. Learned trial court has observed in the impugned order that complainant has taken a clear stand that she was cheated by her earlier advocate Satyapal Singh Verma by taking her signature on blank papers on the pretext of preparation of application and other documents on behalf of her and got a wrong affidavit in her name filed in which it is shown that she has admitted to be a divorcee whereas she had denied the averment of opposite party that she is a divorcee; she has also stated that she never exerted pressure on opposite party to divorce her.

9. At the stage of evidence, the complainant examined herself as PW-1, her sister Km. Momina as PW-2 whereas opposite party examined himself as DW-1. Both parties have filed documentary evidence before the court of learned Magistrate and after undergoing appreciation of evidence in the light of pleadings of the parties and other documents available on record, learned Magistrate has

concluded in the impugned order dated 10.1.2020 that on the basis of evidence on record he is of conclusion that the complainant was subjected to domestic violence and harassment by opposite party for dowry; the complainant has also stated that her husband had not born his responsibility to maintain her till date; the opposite party is an advocate by profession; the complainant has stated that she is residing at her parental place on being separated from her husband.

10. Learned Magistrate has directed in the operative order that in case the complainant wants to reside in shared household, the opposite party shall provide a room to her and will create no restrain in her residence therein. Learned Magistrate has also passed a protection order to the effect that the opposite party shall refrain from giving any mental or physical violence against the applicant; the opposite party has been directed to pay Rs. 01 lakh as lump-sum monetary relief and Rs. 10,000/- per month as monthly maintenance to the applicant which is payable from date of order on 10th of each calender month.

11. Feeling aggrieved by the impugned order dated 10.1.2020, the opposite party filed a criminal appeal before the court of session which was finally decided after affording opportunity of hearing to both parties by the judgement and order dated 11.2.2022 whereby the judgement passed by learned Magistrate in complaint case no. 850 of 2017 has been affirmed and appeal preferred by the opposite party has been dismissed.

12. In present Criminal Revision no. 1146 of 2022 the revisionist has assailed the judgement and orders passed by both courts below whereby various protection and monetary relief and maintenance orders have been passed against the revisionist.

13. Criminal Revision no. 5859 of 2024 has been filed by the original applicant Tarannum Jahan against the order dated 2.9.2024 passed in her application dated 20.10.2020 filed in pursuance of the final judgement and order dated 10.1.2020 passed in Complaint Case no. 850 of 2017 under various provisions of the Act, 2005.

14. The revisionist in Criminal Revision No. 5959 of 2024 has stated in application dated 20.10.2023 under section 19A of the Act, 2005 that by the judgement dated 10.1.2020, Rs. 01 lakh lump-sum payment and Rs. 10,000/- monthly maintenance was awarded to the applicant. Apart from that it is also directed therein that opposite party shall provide a room in shared household and will not create any hindrance in her residence therein. Hon'ble High Court vide order dated 24.9.2021 directed for execution of that order within three months. In pursuance of the said order, the opposite party has paid Rs. 3,60,000/- on 17.2.2022 but which covers a period of April, 2022. Rs. 1,80,000/- which is due from May, 2022 to October, 2023 is still outstanding on opposite party; neither any order has been passed for providing her a room in her household for residence nor return her stridhan under section 19 of the Act. She has also filed an application in this regard. The judgement and order dated 10.1.2020 passed by learned Magistrate has been affirmed in the appeal by the Additional Sessions Judge.

15. The original opposite party has filed Criminal Revision no. 1146 of 2022 but no stay has been granted regarding execution of the order; the matter was referred to Mediation centre by this Court

in Revision No. 1146 of 2022. However, the impugned order dated 2.3.2019 and 21.12.2021 were stayed till conclusion of mediation proceedings, but mediation ultimately failed and interim order was not extended on 2.8.2022 onwards. Hon'ble Court has directed for making available a room in the house in Contempt Case no. 8060 of 2022 vide order dated 15.5.2023. Learned Magistrate has passed an order dated 16.12.2021 to the affect that as divorce has been affected between the parties on Fatwa by Maulana, she was entitled to reside in shared household as Hon'ble Supreme Court has invalidated pronouncement of Triple Talaq after objection of the applicant. Learned Magistrate has issued recovery warrant on 10.3.2022 in which there in no mention of Talaq through Maulana; the opposite party paid Rs. 3,60,000/- on 17.2.2023 on the basis of said recovery warrant.

16. Hon'ble Supreme Court vide order dated 13.10.2023 has clarified that the petitioner is given liberty to seek appropriate remedy before the appropriate forum with regard to non return of stridhan and documents referred to the complaint and she may pursue such other grievance in accordance with law. Learned ACJM vide impugned order dated 2.9.2024 has dismissed the application dated 20.10.2023 filed by the complainant with observation that in Misc. Case no. 56 of 2020 (new No. 353 of 2021) a direction regarding making available a room in shared household, has been set aside vide order dated 16.12.2021 passed by this Court and thereafter in the said Misc. Case, prayer of the applicant for return of her stridhan and documents has also been dismissed vide order dated 9.6.2023 as the complainant has not assailed the said orders dated 16.12.2021 and 9.6.2023; those orders have attained finality.

17. In respect of Criminal Revision No. 1146 of 2022, the revisionist, in person, submitted that the impugned order dated 10.1.2020 and subsequent appellate judgement and order of learned Magistrate dated 11.2.2022 are completely perverse and against the weight of evidence on record. These orders have been passed in very perfunctory and mechanical manner without appreciating the facts and circumstances of the case in its right perspective. He next submitted that the impugned order is based on surmises and conjecture without evaluating factual scenario of the case correctly.

18. In the report of the District Probation Officer dated 18.12.2007 wherein it is stated that he received a letter from the court on 1.11.2017. It is not possible that when complaint was filed on 16.11.2017 how its copy was received on 1.11.2017. This anomalous situation indicates that report of DPO is in respect of some other complaint. The respondent no. 2 has made a completely false assertion in the complaint that she has disbursed Rs. 04 lakhs in the marriage which is not supported with any evidence; she has made a baseless charge that she was a victim of mental and physical violence; infact, she was suffering from various diseases like gynaecological problem, low hormone, fallopian tube blockages, due to which, she could not able to conceive. She is old diabetic. The revisionist has shown her before a number of doctors at various hospitals in New Delhi for continuous period of 15 months and documents regarding treatment are filed on record. The complainant has failed to prove this fact that she was ill-treated by the opposite party on 12.7.2017 whereas both spouse were in New Delhi from 10.7.2017 to 13.7.2017 and this fact is proved by documentary evidence adduced by the revisionist. The revisionist has given divorce to respondent no. 2 on 26.8.2017 as per Muslim law and in this scenario, the allegation of the complainant that on 30.8.2017 she was thrown out from the house by the revisionist after retaining her academic documents, jewellery worth Rs. 04 lakhs and some other valuables.

19. He further contended that in her application dated 6.8.2017 to the Magistrate she has admitted that she left her matrimonial house on 26.8.2017 but this fact was being dis-regarded by both the courts below. The true fact is that the respondent no. 2 herself ill-treated and harassed the revisionist to fulfil her illicit demand of Rs. 10 lakhs from him and the revisionist was left with no option but to give her divorce as per Muslim law on 26.8.2017 and since then she left house of the revisionist; she was not legally wedded wife of the revisionist at the time of filing of complaint then there can be no question about the revisionist being "aggrieved person" under the Domestic Violence Act. She made multiple complaints at different forum in order to falsely rope in the revisionist with a view to exert pressure on him to fulfil her illicit demand. She lodged a baseless FIR against him on 19.10.2019 vide Crime No. 637 at P.S. Kotwali, Bareilly under sections 420, 467, 468, 471 IPC in which final report has been filed in his favour after investigation FIR Case Crime no. 467 of 2017 under sections 498A, 506 IPC and section of D.P. Act also resulted in final report.

20. The allegation of demand of dowry in the form of Rs. 05 lakhs and Car imputed against the revisionist is baseless and false. The maintenance of Rs. 10,000/- and Rs. 01 lakh as permanent alimony as awarded by the courts below, is exorbitant and has been awarded in very lackadaisical manner. Once the revisionist has already divorced his wife on 26.8.2017 it was not possible for him to indulge him in any kind of illegal activity against her on 30.8.2017. It is revisionist who has suffered extreme mental torture at the hands of respondent no. 2.

21. He lastly submitted that the revisionist has already been paying Rs. 4,000/- per month to the respondent no. 2 as maintenance under section 125 Cr.P.C. and said amount has not been adjusted by the court below. The revisionist is an advocate by profession and his monthly earning is hardly Rs. 4000/- to 6000/-. Learned court below has imposed heavy financial burden on the revisionist without assessing his monthly earning. The respondent no. 2 is a working lady and able to maintain herself. The respondent no. 2 has shown herself as divorcee in Criminal Revision filed against summoning order in criminal Complaint Case no. 200 of 2018 in the affidavit dated 16.7.2019.

22. Per contra, respondent no. 2, in person, submitted that the respondent no. 2 is a victim of domestic violence in her matrimonial home; she was physically and mentally tortured by her husband and sister-in-law. There is no valid divorce (Talaq) between the spouse and the revisionist has got a fake instrument of divorce to avoid his responsibility towards the respondent no. 2, his wife. Triple Talaq has been de-recognized by Hon'ble Supreme Court. The revisionist has violated the provision of Talaq-e-Ahsan. The respondent no. 2 was expelled from the house of the revisionist on 30.8.2017; she visited police station Baradari on the next day where she had not stated about Talaq but she told mutual discord between the husband and wife and from there she went to her home. This fact is evident from Paper No. 57-ka, 57-Ka(1) to 57-ka(16). She has filed audio recording of her conversation with the SHO, which reveals that she was dislodged on 30.8.2017 from the house of the revisionist. She was again kicked out from the place of her husband after giving her beating on 10.11.2017. The respondent no. 2 has never admitted the fact of Talaq as propounded by the revisionist. She has been given separate room to live in the house, which is very small and it is hardly sufficient for her residence; the ailment shown by the revisionist regarding her, was only due to harassment and torture given to her by her husband; her husband is practising lawyer and due to his pressure, the local advocates used to show their reluctance to pursue her case. She had obtained

interim bail in case under section 384 IPC filed by husband but her husband got interim bail cancelled by exerting pressure on the counsel; he had got a false affidavit prepared in her name in collusion with her counsel Satya Pal in which it is shown that she has projected herself as divorcee; she is over burdened with debts as her husband has neglected to maintain her; the revisionist belongs to landlord family; his father is a government pensioner; he has let out many shops on rent in city of Bareilly. The impugned order passed by the learned courts below are based on evidence on record and the monetary relief provided therein is just and fair which requires no interference in present revision.

23. There is difference of stand taken by the parties regarding factum of divorce allegedly propounded by the revisionist to respondent no. 2 on 26.8.2017, which has been denied by respondent no. 2. The revisionist has taken stand that after first pronouncement of divorce on 26.8.2017 in the process of Talaq-e-Ahsan, she neither agreed to reunite with him nor she reconcile with him within statutory period of 90 days and instead she was taking shelter of police station and administrative authorities during this period. Their Nikah and Talaq both were carried out according to Sariyat. The intricate question of divorce claimed by the revisionist and denied by respondent no. 2 cannot be looked into matrimonial proceedings due to want of sufficient evidence. However, position of law is very clear in this regard. Hon'ble Supreme Court has now crystallized the law in the manner that a divorced Muslim lady is entitled for maintenance under section 125 Cr.P.C.. This legal position is laid down and reiterated by Apex Court in various judgement like Mohd. Ahmad Khan vs. Shah Bano Begum, AIR 1985 SC 945, Danial Latifi vs. Union of India, AIR 2001 SC 3958, Shabana Bano vs. Imran Khan, (2010) 1 SCC 666, Iqbal Bano vs. State of U.P., (2007) 6 SCC 785, Shamim Bano vs. Asraf Khan, (2014) 12 SCC 636, Shamima Farooqui vs. Shahid Khan, AIR 2015 SC 2025.

24. A perusal of ratio laid down in the aforesaid judgements, it is obvious that divorced Muslim wife is entitled to claim maintenance under section 125 Cr.P.C. beyond period of Iddat and till she re-married.

25. As the revisionist has failed to prove factum of divorce given to respondent no. 2 by cogent evidence, there is no wrong in the impugned order passed by the court below wherein the revisionist has been directed to provide separate room for residence of respondent no. 2 in shared household. The Act, 2005 defines "aggrieved person" means any woman who is, or has been, in a domestic relationship with the respondent and who alleges to have been subjected to any act of domestic violence by the respondent; "domestic relationship" has been defined under section 2(f) of the Act which means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage, or through a relationship in the nature of marriage, adoption or are family members living together as a joint family; Section 3 of the Act defines various sort of domestic violence which includes physical abuse, sexual abuse, verbal and emotional abuse and economic abuse.

26. An aggrieved person or a Protection Officer or any other person on behalf of the aggrieved person may present an application to the Magistrate seeking one or more reliefs under this Act. Provided that before passing any order on such application, the Magistrate shall take into

consideration any domestic incident report received by him from the Protection Officer or the service provider. Section 17 provides that wife is entitled to claim right to residence in a shared household and a shared household would means house belonging to or taken on rent by the husband, or house which belongs to joint family of which husband is a member. A Magistrate can pass protection order under section 18, residence order under section 19, monetary relief order under section 20, custody order under section 21, compensation order under section 22 of the Act. Section 31 provides for penalty for breach of protection order by the husband. Section 36 provides that provision of this Act shall be in addition to, and not in derogation of the provision of any other law for the time being enforce.

27. From bare perusal of the aforesaid statutory provision, it is crystal clear that a woman who is or has been wife of respondent or has left with him, in any point of time, in a relationship taking into marriage for sufficiently long time, can seek various sort of protection order under the Act. If a divorced Muslim woman can seek maintenance from her previous husband under section 125 Cr.P.C. there is no reason to deny her various sort of relief provided under Domestic Violence Act, which is to be granted under law by the Magistrate having jurisdiction. So far as the allegation of cheating made against respondent no. 2 by the revisionist is concerned, it is of common experience that in advertisement of any kind, often some puffery and exaggeration is infused, even if, it is assumed that in view of academic documents the respondent no. 2 was 42 years of age at the time of marriage and she and her family members suppressed this fact in the marriage advertisement and wherein she had shown to be of 32 years of age. This fact cannot be lost sight that the revisionist as well as respondent no. 2 both are well educated persons and this is not the case of revisionist that he had not seen the respondent no. 2 before the marriage, therefore, it is presumed that after being satisfied with the proposal of marriage he solemnized marriage with respondent no. 2.

28. The revisionist is practising lawyer in Bareilly and Rs. 01 lakh as permanent alimony and Rs. 10,000/- as monthly maintenance awarded by learned Magistrate and affirmed by by the appellate court is neither exorbitant nor unreasonable or unjust. The respondent no. 2 has been successful to prove this fact prima facie on the strength of her evidence that she was a victim of domestic violence committed against her by husband and his relatives. The revisionist has filed a copy of Fatwa of Nikah dated 4.12.2017 from Markaji Darul Ifta, 82 Saudagran, Bareilly issued by Mufti Mohd. Afzal Rizvi in Urdu with Hindi translation but same has not been duly proved, therefore, no different opinion can be given thereon.

29. Both parties have lodged criminal cases against each other which has been assailed by other party before competent court. Merely because of some error in the date in the report of DPO, it cannot be held that this report pertains to some other domestic incident report unconnected with parties to this case.

30. This Court in Application u/s 482 No. 14736 of 2018 Mujeeb and another vs. State of UP and another and in application u/s 482 No. 24441 of 2018, Tarannum Jahan and another vs. State of UP and another, vide order dated 23.2.2023, has allowed both the application and set aside the charge-sheet field in Crime No. 1151 of 2017, under sections 498A, 323, 504, 506 IPC and of DP Act, P.S. Baradari, District Bareilly, which case was lodged at the instance of respondent no. 2,

Tarannum Jahan, and quashed the proceedings arising out of Crime No. 1002 of 2017, under sections 323, 504, 506, 427, 384 IPC, P.S. Kotwali, District Bareilly which was lodged at the instance of present revisionist Muzeeb Ur Rahman. In the said order, this Court had observed as under:

> "4. In the present proceedings, by numerous orders passed earlier, mediation was attempted to be made by the Court itself. Perusal of the order-sheet reveals, some hope existed with the Court, however, no final resolution could be made. While hearing these matters on the last date, I had also tried to persuade the parties to reach a settlement. However, there was irreconcilable gap in the terms of settlement being offered by both sides. Therefore, the Court has been left with no option but to hear and decide the matter on merits. "

31. Hon'ble Supreme Court in Juveria Abdul Majid Patni vs Atif Iqbal Mansoori in (2014) 10 SCC 734, has categorically held that decree of divorce does not absolve the liability of the husband towards his wife from the offence committed or to deny the benefit to which, she is entitled under the Domestic Violence Act, 2005. It is held that an aggrieved person is entitled to the residential order under section 19, monetary relief under section 20, child custody under section 21 and compensation order under section 22 of Domestic Violence Act. Moreover, even if after obtaining decree of divorce, the wife, who had shared a household in the past, but was no longer residing with the husband, can file a petition under section 12 of the Domestic Violence Act if subjected to domestic violence seeking relief under sections 18 to 23 of Domestic Violence Act. In present Case, trial court has recorded a finding, which is based on evidence on record that complainant is victim of domestic violence and that finding of fact need not to be interfered in present revision. It is needless to add that for a complaint of domestic violence, demand or proof of dowry is not a pre-requisite. Thus, the plea of the revisionist that after divorce between the spouse, the petition of wife for relief under Domestic Violence Act is not maintainable, holds no ground. In FIR, Case Crime No. 467 of 2017, under sections 498A, 506 IPC and section of D.P. Act dated 15.12.2017, P.S. Quila, Bareilly, police submitted final report and same has been accepted by the court concerned on 11.7.2018 after recording statement of the complainant Tarannum Jahan.

32. Consequently, I find no substantive factual or legal error in the impugned judgement and order of the learned Magistrate as well as appellate order passed by learned Additional Session Judge/FTC whereby protection order, monetary compensation and award of monthly maintenance is concerned, passed by the Magistrate, has been affirmed. The revision lacks merit and deserves to be dismissed.

33. The Criminal Revision No. 1146 of 2022 is, accordingly, dismissed.

34. However, it is clarified that any amount received by the respondent no. 2, Smt. Tarannum Jahan, in proceedings under section 125 Cr.P.C. as maintenance/ interim maintenance, as the case may be, shall be adjusted towards arrears of maintenance as awarded in the impugned judgement and order passed by learned Magistrate in present case.

35. In regard to Criminal Revision No. 5859 of 2024, it is noticeable that after passing of judgement and order dated 10.1.2020, wherein, learned ACJM, on complaint filed by the complainant, Tarannum Jahan, seeking various reliefs under different provisions of D.V. Act, had awarded Rs. 01 lakh as one time monetary compensation and Rs. 10,000/- as monthly maintenance from the date of judgement dated 10.1.2020, which is payable by opposite party, alleged husband. Apart from that, learned court below has directed the applicant to live in shared household if she wishes to do so and in that event the opposite party shall provide a room in his home and will not create any obstacle in her residence therein. The opposite party was also directed to refrain from committing any act of physical or mental violence against the complainant. This order was upheld by the appellate court in Criminal Appeal no. 05/2020 by judgement and order dated 11.2.2022. Though, the Criminal Revision no. 1146 of 2022 filed by opposite party, Muzeeb Ur Rahman, against the said protection /maintenance orders, has been dismissed by this Court vide present judgement as mentioned above, therefore, finality has been attached to said order.

36. After passing of judgement dated 10.1.2020 by the court of first instance in which aforesaid orders were passed in favour of complainant, she has filed a Misc. Application No. 56 of 2020 for extension of said order under section 12 of the Act, she also moved an application under section 19 of the Act for appropriate orders against the opposite party to restore her stridhan and academic documents and for providing her a room in the house of the opposite party. In said application dated 20.10.2023 the applicant has stated that Hon'ble High Court has passed order on 24.9.2021 to dispose of execution of said order within 03 months in Application u/s 482 No. 21214 of 2024 vide order dated 8.7.2024. However, opposite party has paid only Rs. 3,60,000/- an amount of maintenance due to her on 17.12.2022 which covers a period upto April, 2022 and Rs. 1,80,000/- which is due to be paid from May, 2022 to October, 2023 is still outstanding on opposite party; neither direction has been issued for executing court for providing her a room in shared household nor return of stridhan, ornaments and academic documents has been passed whereas residence order is passed under section 19 of the Act; there is no legal impediment in execution of judgement and order dated 10.1.2020 passed by the trial court.

37. Learned ACJM-II has passed final order dated 16.12.2021 in case no. 56 of 2020 under section 12 of the Act to the effect that in judgement dated 10.1.2020 although opposite party was directed to provide a room in shared household for residence of the applicant but as divorce was effected between the parties prior to passing of order dated 10.1.2020 by the learned ACJM, court no. 5, Bareilly in the year 2017, therefore, on account of divorce between the parties, according to Muslim rites and rituals, in the year 2017, the applicant cannot be entitled to claim right of residence in shared household under sections 17 and 19 of the Act and opposite party was directed to pay amount of maintenance due from 10.1.2020 in two instalments, failing which, recovery warrant shall be issued. Thereafter, on 10.3.2022 learned ACJM-II has issued a recovery warrant for Rs. 3,60,000/- and said amount was recovered pursuant to recovery warrant on 17.2.2023 and paid to the applicant; protection order dated 10.1.2020 has been affirmed by the appellate court and it is observed in the appellate judgement dated 11.2.2022 that no legal or factual error is found in the impugned judgement and order dated 10.1.2020. It is noticeable that in Contempt (civil) Application No. 8060 of 2022 (Tarannum Jahan vs. Sadhna Kumari Gupta, ACJM), this Court on 15.5.2023 passed the following order:-

"1. The applicant has appeared in person.

2. Sri Sudhir Mehrotra, learned counsel appearing for Allahabad High Court, states that according to instruction, the order passed on the application which was moved by the applicant has been complied with to the extent that possession of one bed-room has been given to the applicant and an amount of Rs.3,60,000/- has been deposited with the applicant by her husband. He contends that the application which was moved by the applicant before the officer concerned was decided and the proceedings of Case No. 56 of 2020 is still going on.

3. List this matter on 11th July, 2023. "

38. Hon'ble Supreme Court in SLP (Crl) No. 30092 of 2023 filed against the judgement and order dated 23.2.2023 in Application u/s 482 No. 14736 of 2018 while dismissing the Special Leave Petition has observed that the petitioner is given liberty to resort remedy before the appropriate forum to her grievance relating to return of stridhan and documents.

39. Learned ACJM-II has dismissed the said application under section 19 of the Act by the impugned order dated 2.9.2024 with observation that earlier application filed by the applicant, has been dismissed by order dated 16.12.2021 regarding providing her a room in shared household on merits and thereafter her prayer for providing her stridhan and documents has also been dismissed by the court vide order dated 9.6.2023. The applicant has not sought any legal remedy against the said orders dated 16.12.2021 and also order dated 9.6.2023, therefore, the application dated 20.10.2023 (wrongly mentioned as application dated 20.10.2020 due to typographical error) is of no avail. It is settled legal position that executing court cannot go behind the decree. Although the present revision relates criminal proceedings under the Act, 2005 yet the protection and maintenance order passed by court of first instance in favour of complainant are being executed by the court concerned and various residence order was passed but the executing court by order dated 16.12.2021 has rejected the application of the complainant to provide her a room in shared house of her husband on the ground that divorce has been effected between the spouse prior to filing of application under section 12 of D.V. Act. The factum of divorce is asserted by the opposite party and denied by the applicant; still inconsistent plea of the complainant is that divorce and Fatwa issued by Maulana is not basis of Talaq.

40. This Court at this juncture is not inclined to pass any finding regarding validity of alleged divorce between the parties but once residence order has been passed by court of first instance and same has been affirmed by the appellate court and complied in contempt application, the direction in this regard has to be executed by the trial court instead of denying that relief further deviating from judgement and order under execution, therefore, order dated 16.12.2021 passed in Case No. 56 of 2020 under section 12 of D.V. Act and consequent order dated 2.9.2024 passed in this regard are liable to be set aside to that extent. So far claim of the applicant for return of Stridhan is concerned. There is no direction in original judgement and order, which has been affirmed by the appellate court regarding return of her stridhan or academic documents. The applicant has rightly inserted the claim again in execution proceedings pursuant to observation made by Hon'ble Apex Court in

order dated 13.10.2023. By order dated 9.6.2023 learned Magistrate has disposed of application dated 24.3.2023 and objection dated 10.4.2022 filed thereon by the opposite party.

41. Learned trial court has rejected the application dated 24.3.2023 being not maintainable on the ground that she had not made any prayer for return of stridhan and academic documents in original execution application no. 56 of 2020 (new number 335 of 2021). Learned Magistrate has rejected the prayer in the impugned order dated 2.9.2024 after being taken cognizance on above direction by Hon'ble Supreme Court regarding prayer of the applicant or return of stridhan and documents. The ground of refusal of prayer given in the impugned order cannot be countenanced as the applicant has re-introduced the claim in pursuance of direction of Hon'ble Supreme Court and in this situation reference of order dated 9.6.2023 is insignificant. Therefore, the impugned order dated 2.9.2024 is not sustainable and deserves to be set aside. As regards claim of the applicant for a room in shared house is concerned, opposite party is directed to provide and if already provided, let her continue in the room in his house for her residence if she wishes to reside therein, and the prayer of the applicant in this regard is allowed. As regards claim of return of stridhan is concerned, learned trial court is directed to decide the plea of return of stridhan and documents raised by the applicant in her application dated 29.10.2023 afresh after giving opportunity of hearing and leading evidence to both sides and disposed of the prayer strictly in accordance with law. The executing court cannot travel behind the decree or final order. Thus the order dated 16.12.2021 and 9.6.2023 are hereby modified to the extent discussed as above in terms of this order.

42. Reliance has been placed by respondent on judgement of Calcutta High Court in Ashok Majumder @ Ashoke Majumder vs. The State of West Bengal & another passed in C.R.R. No. 2324 of 2014 on 6.9.2016 wherein the Court has observed as under:

> "The question is now whether after the divorce this petitioner can stay in the shared household or get any residential order under Section 19 of the said Act of 2005. Can a divorced wife claim right to reside to in the share household under Section 17 of the Act. My answer to this question is clear no. This petitioner has already filed one application under Section 125 of the Cr. P. C. and as such the order for maintenance can be passed by that court to give monetary relief to the wife.
>
> Thus, the matter as stands now that after the decree for divorce has been pronounced, this wife cannot be termed as 'aggrieved person' and if she is not one 'aggrieved person' then she cannot maintain one application under Section 12 of the Act of 2005. It may be noted that this application under Section 12 was filed in the year 2013 after three years of that ex parte decree for divorce. This delay in filing of this application for three years may also be considered in favour of the petitioner/husband, which can be treated as harassing one. It may also be noted that this misc. case was filed in 2013 and so also the F.M.A before this Court. The situation may alter if."

43. On facts of the case wherein the claim of divorce of Talaq-e-Ahsan made by respondent Mujeeb Ur Rahmn has categorically been denied by revisionist and she has already contained that no such

divorce has taken place between them and divorce deed is an outcome of forgery. Therefore, question of divorce between the parties is still to be adjudicated in appropriate proceedings. On perusal of judgment of Hon'ble Supreme court in Juveria Abdul Majid Patni (supra), I find no such distinction between divorcee wife and a wife with whom the marriage of respondent is subsisting for providing relief under section 12 of the Act, therefore, aforesaid judgement of Calcutta High Court may not be taken as extending benefit to the cause of the respondent.

44. Consequently, the impugned order dated 2.9.2024 is set aside. Criminal Revision No. 5859 of 2024 stands allowed.

August 27, 2025 Dhirendra/